

would have a substantial deterrent effect....” (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 920.)

Again, Plaintiff presents no evidence to indicate that the costs associated with initiating an arbitration are unusually high or that he cannot afford them. He also fails to explain why being required to pay the filing fee would prevent buyers from seeking to enforce legal rights. Plaintiff was required to pay a filing fee of \$435 to file his complaint in this action. There is no evidence showing that the AAA filing fee is disproportionately greater or prohibitively high.

In addition, after the filing fee is paid by Plaintiff the Arbitration Agreement makes clear that Tesla “will pay all subsequent AAA fees for the arbitration,” except for attorney, expert, and witness fees incurred by Plaintiff. This provision is actually more beneficial to Plaintiff as he would be required to pay his own filing fees for any motions (such as this one) while in court. It is also worth noting that if Plaintiff prevails in the arbitration, Tesla will reimburse his initial filing fee.

Stay of Proceedings

“If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc. § 1281.4.)

Based on the above, Defendant requests that this matter be stayed pending the resolution of the arbitration. Plaintiff does not dispute, or even address, the request to institute a stay of these proceedings if the Court grants the motion to compel arbitration. A stay is warranted.

Conclusion

Based on the above, Tesla’s motion to compel arbitration is **granted**. The parties are ordered to submit this matter to arbitration before the AAA in accordance with the terms of the Arbitration Agreement. This matter is **stayed in full**, pending conclusion of the arbitration.

15. 9:00 AM CASE NUMBER: C26-00315

CASE NAME: GARY DARTEZ VS. REDWOOD PROPERTY INVESTORS III, LLC

***HEARING ON MOTION IN RE: MOTION TO COMPEL PRESERVATION OF EVIDENCE; LITIGATION HOLD; AND RELATED RELIEF**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Gary Dartez (“Plaintiff”) Motion to Compel Preservation of Evidence, etc. against Defendant Redwood Property Investors III LLC (“Defendant”) is **denied** as set forth herein.

Background

In this case, Plaintiff Gary Dartez (“Plaintiff”) alleges that Defendant Redwood Property Investors III LLC (“Defendant”) the following causes of action relating to real property leased to him by Defendant

located at 20 E. 16th St., Antioch, California ("Subject Property"): Equitable Full Accounting, Fraudulent Misrepresentation and Concealment, Conversion, Violation of Antioch's Municipal Ordinance regarding Rent Stabilization, Unfair Competition, Suppression of Evidence, and Common Counts. Defendant generally denies these allegations and has filed a Motion for Stay pending resolution of a related federal court action, which is calendared for October 14, 2026. Defendant also identified that Plaintiff has three pending cases before the Court:

1. Petition for Writ of Administrative Mandate, filed September 17, 2025 (Case No. N25-1849);
2. This action, filed on January 29, 2026 (Case No. C26-00315); and
3. An action filed in United States District Court, Northern District, California (Case No. 3:26-cv-01644-SK)

Plaintiff claims that he has paid \$145,523 in rent and related charges for his tenancy at the Subject Property. He asserts that Defendant controlled the rent accounting system and records for his tenancy. These records are necessary to help him prove his case in chief against Defendant.

On January 19, 2026, Plaintiff filed a Motion to Compel Preservation of Evidence, Litigation Hold and Related Relief ("Motion"). The Motion was supported by a Memorandum of Points and Authorities and Declaration of Plaintiff in support thereof. Specifically, Plaintiff seeks the preservation of accounting documents and electronically stored information, and other orders to prevent spoliation of evidence. On May 7, 2026, Plaintiff filed a supplemental declaration, including 38 pages of exhibits in support his Motion.

On May 7, 2026, Defendant filed an opposition to the Motion asserting, essentially, that the Plaintiff does not provide valid legal authority to support the requested relief.

Analyses

Self-Represented Litigants Are held to the Same Standard of any Litigant before the Court

The Court is aware that Plaintiff is proceeding without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an

attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Plaintiff filed this motion at the outset of this litigation.

Plaintiff Does not Cite to Proper Authority in Support of the Motion

In California, there is generally no dedicated "motion to preserve evidence" in civil litigation. Instead, parties traditionally employ the practice of sending formal Preservation of Evidence Letters to trigger legal obligations. Absent formal discovery, the Discovery Act, which does contain provisions to compel production and for evidentiary sanctions, are not triggered.

Plaintiff's Motion requests that Defendant Redwood to preserve evidence. Plaintiff cites to the following authority in support of its motion: Code of Civil Procedure §§128(a)(1) and 128(a)(4) and 187. The Court finds that these statutory provisions are inapplicable. Cal. Code of Civ. Proc. § 128 relates to the Court's contempt authority. Specifically, "Contempt is a disobedience of court by acting in opposition to its authority, justice or dignity[.]" (*Raskin v. Superior Court of County of Los Angeles* (1934) 138 Cal.App. 668, 670.) Section §128 pertains to the Court's power to initiate contempt proceedings and specifically, §128(a) states: "Every court shall have the power to do all of the following: (1) To preserve and enforce order in its immediate presence. [¶] (4) To compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein."

Moreover, the reference to "order" in Code of Civil Procedure § 128(a)(1) is regarding the "inherent power to make sure judicial proceedings are conducted in a manner consistent with the orderly administrative of justice[.]" (*Lloyd v. Superior Court* (1982) 133 Cal.App. 3d 896, 899-900.) It is not a reference nor a statute that gives the Court a authority to issue any type of order it needs, as the motion attempts to assert. Additionally, Code of Civil Procedure §128(a)(4) pertains to the Court's ability to punish those who defy the Court's orders. It is not direct authority which gives the Court broad discretion to issue discovery preservation orders. As pointed out by Defendant, contempt is a punishment; it is not a discovery tool. There are no orders issued in this case which were disobeyed by Defendant. Plaintiff's reliance on the contempt statutes are misplaced.

Plaintiff's reliance on Code of Civil Procedure §187 is also ineffective as it does not provide any authority or support for the Court to issue the type of relief or order that Plaintiff is seeking. Section 187 is a "necessary and proper" clause which generally provides the Court with authority to use procedures or enact processes that may be adopted by a Court to enact or enforce a statutory or Constitutional provision. This general statute does not confer the specific authority to preserve evidence at this stage as suggested by Plaintiff.

Accordingly, the Court finds good cause to deny this Motion.

Ruling

1. Defendant's Objection to Plaintiff's Supplemental Declaration is **sustained**. The motion rules do not permit the filing of a supplemental declarations unless ordered by the Court. The Court did not request any supplemental declaration. Even if the declaration was requested, it was filed late.
2. Plaintiff's Motion is **denied**.
3. Defendant is directed to prepare and e-file a conforming order, attaching a copy of this tentative ruling within five (5) days from the date of this hearing.
4. The Court requests that this Court issue a Notice of Related Case. The related case is *Gary Dartez v. City of Antioch Rent Program* (Case No. N25-1849), which is assigned to the Hon. Leonard Marquez.

16. 9:00 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY (CONTINUED FROM 3/18/26 *ON THE RESERVED ISSUES ONLY*) ABATE, OR ALTERNATIVELY, TO COMPEL JOINER AND CONTINUE TRIAL**

FILED BY:

TENTATIVE RULING:

Summary:

The Court **grants** its own motion, *sua sponte*, for the appointment of a Discovery Referee for this case as set forth in this tentative ruling. Defendant's request for sanctions is reserved, pending review by the Discovery Referee. No appearance is required at the May 20, 2026 hearing, unless the Parties seek further guidance from the Court.

Background

This is a continued hearing on Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joiner and Continue the Trial and for monetary, issue and/or terminating sanctions against Plaintiff Lynette Westbrook ("Plaintiff"). The Motion was continued from March 18, 2026 to May 18, 2026.

At the March 18, 2026 hearing, the Court made the following orders:

1. Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joiner against Plaintiff Lynette Westbrook ("Plaintiff") is **denied** as moot.
2. Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Terminating Sanctions against Plaintiff Lynette Westbrook ("Plaintiff") is **denied**.
3. The Court **reserved** on ruling on Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Issue sanctions against Plaintiff Lynette Westbrook ("Plaintiff"). Instead, Counsel for the Parties are ordered to:

(a) Conduct a comprehensive meet and confer session either in person or remotely of such